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Case Number: 25PSCV02811 Hearing Date: August 17, 2026 Dept: 6

CASE

NAME: Catrice

Claxton v. Leticia Miramontes, et al.

Plaintiff's

Motion to Compel Defendant Leticia Miramontes Pelayo to Provide Further Responses to Requests for Production of Documents Set One and Request for Sanctions Against Defendant in the Amount of \$4,960

TENTATIVE

RULING

The Court GRANTS in part and DENIES in part Plaintiff's Motion to Compel Defendant Leticia Miramontes Pelayo to Provide Further Responses to Requests for Production of Documents Set One and Request for Sanctions Against Defendant. The Court DENIES the Motion as to RFP Numbers 10 and 17. The Court GRANTS the Motion as to RFP Numbers 1, 2, 3, 4, 5, 7, 9, 11, 12, 13, 14, 15, 16, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 33, 34, 35 and 36. Defendant Pelayo must provide further verified code-compliant responses without objection and produce any additional responsive documents within 30 calendar days of the Court's order.

The Court DENIES Plaintiff's request for monetary sanctions.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a medical malpractice case. On August 4, 2025, plaintiff Catrice Claxton (Plaintiff) filed this action against defendants Leticia Miramontes Pelayo, LPCC (Pelayo), Teladoc Health, Inc., dba Betterhelp, Inc. (BetterHelp) (collectively, Defendants) and Does 1 to 25, alleging causes of action for medical malpractice/professional negligence, intentional infliction of emotional distress, breach of fiduciary duty, general negligence, negligent hiring, supervision, retention, and training, fraud & deceit, and sexual harassment (Civ. Code §51.9).

On May 8, 2026, after the Court sustained BetterHelp's demurrer to Plaintiff's Complaint, Plaintiff filed the operative First Amended Complaint (FAC) against the same Defendants and alleging the same causes of action. On August 10, 2026, the Court sustained BetterHelp's demurrer to the FAC's Sixth Cause of Action for fraud & deceit, and overruled the rest of the demurrer.

On June 24, 2026, Plaintiff moved to compel Defendant Pelayo to provide further responses to Requests for Production of Documents Set One for sanctions against Pelayo in the amount of \$4,960. Pelayo did not oppose the Motion.

LEGAL STANDARD

Requests for Production of Documents

Code of Civil Procedure section 2031.310, subdivision (a), provides that on receipt of responses to request for production of documents, the demanding party may move for an order compelling further responses if:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without

merit or too general.

(Code Civ.

Proc., § 2031.310, subd. (a).)

Code of Civil Procedure section 2031.310, subdivision (h), further provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

DISCUSSION

Meet and Confer

The Court finds Plaintiff’s efforts to meet and confer before bringing this Motion sufficient. (Minute Order (4/28/26); Code Civ. Proc., § 2031.310, subd. (b)(2).)

Summary of Arguments and Analysis

Plaintiff moves under Code of Civil Procedure section 2031.310 to compel defendant Pelayo to serve further verified responses to Plaintiff’s Requests for Production of Documents, Set One (the RFPs), and seeks monetary sanctions of \$4,960. Plaintiff contends that, at the April 28, 2026 Informal Discovery Conference, Pelayo agreed to serve complete, verified, and code-compliant responses to the RFPs by May 8, 2026, and that the resulting order permitted Plaintiff to move to compel further responses without a further IDC if the responses were unsatisfactory. Plaintiff argues that the responses Pelayo served on May 8, 2026 were non-compliant. Plaintiff further contends that Pelayo’s late initial responses waived all objections, that Pelayo never moved for relief from that waiver, and that Pelayo acknowledged the waiver at the IDC.

Plaintiff contends that Pelayo’s “inability to comply” responses to RFP Numbers 1, 4, 5, 7, 9–16, 19–21, 23, 28–29, and 33 state only that no responsive documents exist, or that a “diligent search” was conducted, without

satisfying Code of Civil Procedure section 2031.230. Plaintiff contends the responses omit the required “reasonable inquiry” language, fail to specify why defendant cannot comply (whether documents never existed, were destroyed, lost, or are no longer in her possession), and fail to identify any person or entity believed to possess the documents. Plaintiff argues the documents are central to her therapy-abuse and negligent-hiring theories and that she is entitled to complete responses to avoid surprise at trial or in depositions.

Plaintiff then contends Pelayo’s responses to RFP Numbers 2, 3, 22, 24, 25, 26, 27, and 34 concerning treatment records are improper. More specifically, Plaintiff argues Pelayo improperly refused to produce treatment-related documents on the ground that no signed release of information or court order was in place. Plaintiff contends that (a) defendant waived all objections, including privacy, by responding late; (b) no authorization is required because the parties are already in litigation and the documents are relevant to Plaintiff’s own treatment; and (c) any remaining privacy concern was mooted when Pelayo signed the stipulated Protective Order on June 16, 2026, which supplies confidentiality protections for the very information at issue.

Plaintiff further contends that Pelayo’s responses to RFP Numbers 35 and 36 are deficient. Plaintiff argues that Pelayo, without objection, artificially narrowed her responses, producing only her current CV for RFP Number 35 and a single email for RFP number 36, and failed to confirm that a diligent search and reasonable inquiry were conducted or that all responsive documents were produced. Plaintiff contends numerous categories of responsive documents (offer letters, payment records, onboarding materials, provider-profile and website content) should exist, that Pelayo remains affiliated with Teladoc and retains access to them, and that the responses are therefore incomplete under Code of Civil Procedure section 2031.310, subdivision (a)(1).

Finally, regarding RFP Number 17, Plaintiff argues that Pelayo produced only her current (May 2026) CV, which Plaintiff contends has been altered, and that Pelayo did not produce the original, unaltered CV or resume defendant submitted to Teladoc at hire. Plaintiff argues the hire-date version is directly responsive and material to the negligent-hiring claim because it reflects the qualifications defendant represented when retained, and that the response fails to confirm a diligent search or whether other versions exist.

Analysis

The Court agrees with Plaintiff that Pelayo's responses to RFP Numbers 1, 4, 5, 7, 9, 11–16, 19–21, 23, 28–29, and 33 fail to comply with Code of Civil Procedure section 2031.230 by failing to explain the reason Plaintiff does not have any documents responsive to those requests, e.g. the documents never existed, have been destroyed, lost or misplaced, or are no longer or have never been in Pelayo's possession. Pelayo also failed to identify persons or organizations who might be in possession, custody, or control of responsive documents, along with any corresponding addresses. (Alfaro Decl., Ex. 5, pp. 170-178 of pdf.) However, the Court finds Pelayo's response to RFP Number 10 sufficient, as it only indicates that Pelayo located documents that Pelayo had previously produced and would produce again. Pelayo then indicates that Pelayo has no "additional" responsive documents, which is not the same as saying no responsive documents exist. (Alfaro Decl., Ex. 5, p. 172 of pdf.) Accordingly, the Court DENIES the Motion as to RFP Number 10, and GRANTS it as to RFP Numbers 1, 4, 5, 7, 9, 11–16, 19–21, 23, 28–29, and 33.

The Court also agrees that Pelayo's refusal to produce documents from Plaintiff's own treatment records for RFP Numbers 2, 3, 22, 24, 25, 26, 27, and 34 is improper because Plaintiff put these documents at issue by filing this lawsuit. (See Evid. Code, § 1016, subd. (a) ["There is no privilege under this article as to a communication relevant to an issue concerning the mental or emotional condition of the patient if such issue has been tendered by: (a) The patient"]; *In re Lifschutz* (1970) 2 Cal.3d 415, 438 ["no constitutional right enables the psychotherapist to assert an absolute privilege concerning all psychotherapeutic communications"].) The Court agrees that any privacy concerns are now mooted by the parties' stipulated protective order. (Stipulation and Order (6/26/26).) The Court further agrees that any privacy objections were waived by the time Pelayo responded. (See Alfaro Decl., ¶¶ 4-6; Minute Order (4/28/26); Code Civ. Proc., § 2031.300, subd. (a).) The Court therefore GRANTS the Motion as to RFP Numbers 2, 3, 22, 24, 25, 26, 27, and 34.

Regarding RFP Numbers 35 and 36, the Court finds that Pelayo's response does not clearly indicate that there are no other documents responsive to these requests. If Pelayo has offer letters, agreements, invoices, correspondence or other records showing that Pelayo was affiliated with BetterHelp during the treatment period of Plaintiff, then such documents must be produced. Similarly if Pelayo has documents showing the information that BetterHelp posted on its website regarding Pelayo, then those documents must also be produced. The Court therefore GRANTS the Motion as to RFP Numbers 35 and 36.

With respect to RFP Number 17, the request simply asks Pelayo to provide a copy of her resume; it does not ask Pelayo to provide a copy of her resume that she originally submitted to Teladoc. (Alfaro Decl., Ex. 5, p. 176 of pdf.) The Court finds Pelayo's response to this request adequate and therefore DENIES the Motion as to RFP Number 17.

Notwithstanding the deficiencies of Pelayo's responses, the Court finds the Pelayo's responses generally responsive enough such that the imposition of monetary sanctions would be unjust. (Code Civ. Proc., § 2031.310, subd. (h).)

CONCLUSION

The Court GRANTS in part and DENIES in part Plaintiff's Motion to Compel Defendant Leticia Miramontes Pelayo to Provide Further Responses to Requests for Production of Documents Set One and Request for Sanctions Against Defendant. The Court DENIES the Motion as to RFP Numbers 10 and 17. The Court GRANTS the Motion as to RFP Numbers 1, 2, 3, 4, 5, 7, 9, 11, 12, 13, 14, 15, 16, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 33, 34, 35 and 36. Defendant Pelayo must provide further verified code-compliant responses without objection and produce any additional responsive documents within 30 calendar days of the Court's order.

The Court DENIES Plaintiff's request for monetary sanctions.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.